

proceedings that the former member would sit beside the representative of the respondent and assist him. Even during the oral proceedings no objection was made to his presence. Moreover, no substantiated reasons of partiality of the opposition division were submitted by the appellant. The request for the reimbursement of the appeal fee was refused.

In T 1647/15 the minutes indicated that the representative of opponent III was interrupted by the chairman during the oral proceedings before the opposition division with: "Shut your mouth" and "Don't talk any more". The board held that the ability of the chairman to hear opponent III with an objective judicial mind could be perceived as having been affected and held that the objection of suspected partiality was justified. The board found it equitable to reimburse the appeal fee paid by each of the opponents I to III.

11.6.13 Suspensive effect of appeal

In J 5/81 (OJ 1982, 155) it was held that there was a substantial procedural violation where the Receiving Section had ignored the suspensive effect of an appeal in contravention of Art. 106(1) EPC 1973.

11.6.14 Non-compliance with order of the board

In T 227/95 a decision was taken by a board to remit the case to the department of first instance (opposition division) for further prosecution and not, as assumed by the division, with instructions to maintain the patent. The fact that the opposition division had not carried out the board's order amounted to a substantial procedural violation with regard to Art. 111 EPC 1973. The case was remitted again to the department of first instance, and the appeal fee was reimbursed.

11.6.15 Referral pending before Enlarged Board

Where a decision of the examining division depended entirely on the outcome of proceedings before the Enlarged Board of Appeal on a legal question or point of law raised under Art. 112 EPC 1973 – and this was known to the examining division – the further examination of the application had to be suspended until the matter had been decided by the Enlarged Board of Appeal. Failure to do so amounted to a substantial procedural violation under R. 67 EPC 1973 (T 166/84, OJ 1984, 489). See also chapter V.B.2.5.3 "Stay of first instance proceedings following a referral".

11.6.16 Refusal of application on one ground only

In T 859/97 the board took the view that it was sufficient for the examining division, when deciding to refuse a European patent application under Art. 97(1) EPC 1973, to state one ground only which in their opinion would prejudice the grant of a European patent. In the case in hand, the examining division was unable to grant a patent because it had concluded that the subject-matter of claim 7 was not new. Consequently, it was under no obligation to comment on the patentability of claims 1 to 6. The requirements of R. 67 EPC 1973 were thus not met.

11.6.17 Cases concerning documentation and communications passing between the EPO and the parties

a) Ambiguous communication or wrong form

In J 3/87 (OJ 1989, 3) it was stated that if an EPO communication was not as clear and unambiguous as it ought to be, and led a reasonable recipient into error, that amounted to a substantial procedural violation, even if the ambiguity of the communication was partly due to an unfortunate provision of the law.

In J 17/92 the appellants complained that the examining division had used the wrong form for its communication, namely a form threatening that the application would be refused if a response was not filed. The board considered that the failure of the examining division to withdraw the wrong form and the threatened sanction of a possible refusal of the application amounted to a substantial procedural violation.

b) No reply to communication under Article 101 EPC

In T 362/02 the opposition division had revoked the patent for the sole reason that the appellant had not replied to a communication under Art. 101(2) EPC 1973 inviting him to file observations. The board found that this decision was a substantial procedural violation because the EPC did not provide any sanction for a party's failure to reply to a communication under Art. 101(2) EPC 1973. Further, revocation of a patent for mere failure to reply to a communication was contrary to the clear intention of the law, which required a proprietor to agree to the form in which a patent was granted or amended and to use clear and unambiguous words if he wished to abandon a patent.

c) Wrong type of communication

In J 10/07 (OJ 2008, 567), the board found that, although the Receiving Section was not to be blamed for issuing a communication under R. 43(2) EPC 1973, as the drawings could not have been in the file on that date, it should not have issued the notification under R. 43(3) EPC 1973 but a communication pursuant to R. 43(1) EPC 1973. This amounted to a substantial procedural violation. If the Receiving Section had followed the legally correct procedure, an appeal would not have been necessary.

d) Period set for opponent to reply to patentee's response

In T 138/08 the appellant (opponent) complained that two months and 21 days was not sufficient time to reply to the patentee's observations filed in response to the opposition. The board observed that the communication of the observations of the patentee had been made merely for information and the opposition division had not raised any matter of substance in the communication. For that simple act a period of two months was considered sufficient. Therefore, the reimbursement of the appeal fee under R. 103(1)(a) EPC was not justified.

e) Observations not forwarded to other party

In T 789/95 the file contained no indication that a copy of the opponent's observations had been forwarded to the patent proprietor. It was therefore to be assumed that the communication of the observations to the patent proprietor had been omitted, in contravention of the Guidelines. In the board's view, this constituted a substantial procedural violation, as it infringed the principle that all parties to proceedings must be accorded the same procedural rights.

f) Appointment of professional representative

In J 20/96 the EPO had waited one year and three months before requesting the appointment of a professional representative and nearly another year before asking for the appellant's new address. Although conceding that the Receiving Section had been slow to request the appointment of a professional representative, the Legal Board ruled that this was not a substantial procedural violation because such appointments were a matter for the appellant; similarly, it was also up to him or his representative to provide his address.

g) Warning in relation to a grace period

As to the EPO's obligation to issue a warning in relation to the grace period of R. 85a EPC 1973 (this provision was deleted in the EPC 2000), and the question of whether or not this warning constituted a "courtesy service", see J 17/04 and J 32/97.

11.7. Reimbursement must be equitable

11.7.1 Causal link between substantial procedural violation and filing of appeal

In order to render the reimbursement of the appeal fee equitable, as a rule a causal link must exist between the alleged procedural violation and the decision of the department of first instance that necessitated the filing of an appeal (T 388/09; see also J 9/10, T 1101/92, T 1198/97, T 2373/11). For procedural deficiencies of a general nature (such as excessive length of proceedings) which affect the whole procedure leading to the contested decision, reimbursement can be equitable even in the absence of a causal link (T 2707/16). In T 3071/19 the board held that if as a result of a deficiency the case is remitted to the examining division without any substantial progress having been made on it, reimbursement of the appeal fee may well be equitable even if the deficiency cannot be directly linked to the filing of the appeal.

In T 677/08 the board held there was no causal link between the procedural violation and the necessity to file an appeal. The application was refused for lack of inventive step, and so the appellant would have had to file the appeal even if the examining division had sufficiently reasoned its refusal of the request for a video conference.

In T 2111/13 the board held that, according to established case law, for the reimbursement of the appeal fee to be equitable a causal link between the substantial procedural violation

and the filing of the appeal was required. According to an alternative approach, a procedural violation is not to be deemed substantial if the outcome of the proceedings would not have been different had the violation not occurred (see in this chapter V.A.11.6.2). In the case at hand, the board saw no need to choose between these two approaches and rejected the appellant's request for reimbursement.

In the cases that follow the boards held that reimbursement was not equitable because no causal link could be established:

In T 2106/10 the board reiterated that any reimbursement of the appeal fee had to be equitable and depended on the question of whether the procedural deficiencies were 1) substantial and 2) forced the appellant to file the present appeal. In the case in hand the board did not address the question as to whether a substantial procedural violation had taken place, since the board was of the opinion that the appellant had to file the appeal irrespective of whether or not substantial procedural violations had taken place.

In T 41/97, a refund was not equitable because the procedural error (refusal of interlocutory revision prior to receipt of the statement of grounds of appeal and before the expiry of the period for filing it) was not the reason the appeal had been filed (see also T 1891/07, T 1994/11, T 2227/09).

In T 711/11 the appellant alleged that the examining division found a lack of unity without providing adequate reasoning. The board stated that lack of unity was not the sole ground given in the contested decision for refusing the application. The appellant would in any case have had to file an appeal in view of the ground of lack of inventive step. Therefore, the board considered the reimbursement of the appeal fee not equitable.

In T 893/90 the contested decision to refuse the application on the grounds of lack of novelty was based primarily on document 1, on which, in contrast to document 2, the appellant had had adequate opportunity to put forward comments. The board stated that the decision under appeal had been fully reasoned, and that the procedural violation as regards the reliance on document 2 was thus not sufficiently closely linked to the need to pay an appeal fee for it to be equitable to reimburse the fee.

In T 601/92 the opposition division had not commented, either in a communication or in its decision, on auxiliary request (5) submitted by the patent proprietor in good time before the decision was issued. Because auxiliary request (2), which had been submitted in the appeal proceedings and which preceded auxiliary request (5), was allowed, the board did not see any reason, despite the procedural violation, to reimburse the appeal fee, as this would not have been equitable.

In T 2377/09 the board took the view that reimbursement of the appeal fee solely on the grounds of the established procedural violation would not be in accordance with the equitability requirement of R. 67 EPC 1973 (R. 103 EPC). This was because the rejection decision was based on additional, alternative grounds which had given the appellant no cause to claim a substantial procedural violation and against which it would in any case

have had to appeal to get the decision set aside (with reference to T 893/90, T 219/93, T 4/98 (OJ 2002, 139) and T 978/04).

In T 840/07 the appellant's request which had succeeded in the appeal was the same as the main request which it had filed before the examining division but had later replaced. The appellant had not pursued that request to the point where it became the subject of a decision. The board concluded that the appellant had had no choice but to appeal if it wanted the result it had eventually obtained before the board. To reimburse the appeal fee would have given the appellant a fee-free appeal which would be inequitable (see also T 784/11, referring to T 4/98).

In T 1891/07 the board held that despite the presence of a substantial procedural violation it would not be equitable to reimburse the appeal fee because the violation could not have been causative in filing the appeal since it occurred after the notice of appeal had been filed.

In T 1990/08 the appellant submitted that the examining division had committed a procedural violation as it had not provided a translation of D1 but had used it to deny inventive step. The board held that even if the inventive step objection including the appraisal of document D1 in the decision were disregarded, the contested decision would still be negative as it had also relied on Art. 84 and 123(2) EPC to refuse the application. Regardless of whether a substantial procedural violation had occurred or not, the appellant would have had to appeal in order to obtain a reversal of the first-instance decision. The alleged procedural violation could not have been the immediate and only cause of the need to appeal and to pay an appeal fee.

In T 433/08 the board and the parties agreed that a violation of Art. 113(1) EPC had occurred because the opposition division had relied in its decision on a document which had not been referred to in the course of the opposition proceedings. The board held, however, that the opposition division would not have reached a decision more favourable to the opponent if it had not taken into account said document. Thus, the opposition division had not acted to the detriment of the opponent. The board concluded that the rights of the opponent (appellant) were not curtailed to an extent that would make the reimbursement of its appeal fee equitable by reason of a substantial procedural violation.

In T 1680/11 the board held that an alleged procedural violation with respect to a decision to rectify under Art. 109 EPC could not justify refunding the appeal fee. A decision to grant interlocutory revision could not be the reason for filing the appeal, as it was – by its very definition – taken after the appeal had been filed.

In T 1414/18 the board found there was a causal link between the substantial procedural violation – the examining division's statement in its communication that "[t]he next procedural step will be summons to oral proceedings during which the application will be refused (Art. 97(2) EPC)" – and the necessity of filing an appeal against the examining division's decision, and found the reimbursement of the appeal fee to be equitable (on its own motion).